12 June 2023

Docket No. NTIA-2023-0005

Attn: Docket Clerk
National Telecommunications and Information Administration
U.S. Department of Commerce
1401 Constitution Avenue NW, Room 4725
Washington, DC 20230
United States of America

Re: Docket No. NTIA-2023-0005, 'AI Accountability Policy Request for Comment,' published on 13 April 2023

To whom it may concern,

I am writing to share my views in relation to Docket No. NTIA-2023-0005, 'AI Accountability Policy Request for Comment' that was published on 13 April 2023. By way of background, I am a Lecturer in Law at Monash University, Australia in the Monash Business School's Department of Business Law and Taxation.[1] My research focus is centred on the legal implications arising from the deployment of artificial intelligence ('AI'). My doctoral thesis, due to be submitted in 2023 and titled 'Assigning Liability in the Context of Modern Artificial Intelligence', seeks to provide a framework for determining legal responsibility arising in uncertain scenarios involving AI. I therefore research and closely follow the legal developments concerning accountability issues related to AI and believe my feedback will be useful in response to the National Telecommunications and Information Administration's

[1] I write this submission in my personal capacity, based on my own research expertise and **not** as a spokesperson on behalf of Monash University. Institutional affiliation is supplied for identification purposes only.

('NTIA') request for comments. I do not address all issues raised by the NTIA in the request, but instead have confined my comments to issues relating to accountability subjects.

Accountability Subjects – Accountability Focus and Context

The NTIA has invited comments regarding where in an AI value chain, accountability efforts should focus. It is important to acknowledge that not all AI systems are the same. There is the potential for great variance in the degree of natural person (or human) oversight that different AI systems require, leading to vast differences in the extent to which AI systems can act independent of human oversight. Compounding this issue of varied forms of AI, is that there is a potential for a variety of actors to influence the context in which an AI system is deployed. Arguably, there are three key groups of actors that could influence how an AI system is deployed viz., producers of AI (manufacturers, designers etc), owners, or users of AI.

In deciding where accountability efforts should be focussed, I advocate in favour of a flexible approach that considers AI situationally. I consider that given the varied nature of AI and the varied contexts in which it could be deployed, it is insufficient to simply consider that set points in the AI value chain should *always* be the focus of accountability efforts. Rather, I advocate that a better approach is to consider the context in which an AI system is deployed and then seek to identify accountability focus points relative to that context. It may be then that AI systems deployed in a medical context, for example, will therefore necessitate different focus points to AI systems deployed in another context, such as an educational setting. There is merit in this approach as it acknowledges that not all AI systems are the same, nor are they deployed by the same actors in the same context. A flexible situational approach is therefore better suited to recognising the varied impact different junctures in the AI value chain can have depending on the context in which AI is deployed.

In adopting such a situational approach to determining where accountability efforts should be focussed, it is important to acknowledge that is not as simple as merely identifying who either created the AI system or who was using the AI system at the time it was deployed. Rather, the question becomes one based on the degree of *influence* a person connected to an AI system has over that system. Yet, influence alone is insufficient; consideration should also be given to whether the influence led the person to *control* the situation such that the outcome generated arose. By this I mean to suggest that in determining where accountability efforts should be focused in an AI value chain, two questions should be asked: 1) who has the most *influence* over the situation in which an AI system is deployed; and 2) who is most likely to *control* the situation such that an outcome generated by the AI system arose?

Regarding the first of these two questions, it may be that some actors in an AI value chain have a greater propensity for influence over an AI system in a given context. For example, if an AI system is one that learns from training data at the point of development and then operates without new or additional data once deployed, this would arguably lend the producers of the AI system to having the most degree of influence over that system. If, however, the AI system requires training data to be supplied further down the value chain, such as data provided by an owner or user of an AI system this would arguably shift the level of influence away from an AI producer to that of the owner or user. In this later example, there would be a reduction in the propensity of the producers' influence over the AI system relative to the first example.

Establishing who has the most influence over a situation in which AI is deployed is not sufficient; consideration should also be given to the issue of control. The second question concerning control must therefore also be addressed. If an actor has influence over an AI system, it does not automatically follow that they have controlled the situation such that their influence leads to an outcome arising from the deployment of AI. Consider for example, in attempting to hold to account a producer of AI, it could be argued that in reaching the view this group ought to be attributed, an underlying factor influencing this judgment is the issue of control, for it is this group who set the parameters of the AI system's construction. Similarly, the arguments in favour of attributing users or owners of AI are also arguably centred on the notion of control, for it is this group that dictate the circumstances in which an AI system is deployed or acts. On this basis, the issue of whether an actor had control in addition to influence is central to identifying where accountability efforts should be directed.

It may be that in the context in which an AI system is deployed, the answer to the two questions I have proposed is indeed a producer of the AI system or, alternatively, the owners or users of an AI system. I consider it is possible then, depending on the degree of control and influence over a situation (or lack thereof) for all three of the above groups viz., producers, owners, or users of AI to be held accountable for the outcomes associated with an AI system. For the avoidance of doubt, I am not suggesting that all three groups necessarily be held accountable simultaneously, but rather as alternative options based on who has the most influence and control. It may be that there are instances of joint influence and control, which will give rise to the need to apportion accountability.

In terms of the question where accountability efforts should be focused, however, this I propose is to be addressed by asking the two questions I raised earlier and then reaching a view as to who has the most influence and control over the situation in which an AI system has been deployed.

Adopting this approach has several key advantages. Firstly, it accommodates the notion that AI is not but one thing but rather there are AI systems with varying levels of complexity and requiring varying degrees of human input. Additionally, by requiring the issues of influence and control to be considered *situationally*, this inherently incorporates consideration of the context in which an AI system is deployed. This is advantageous because it may be that an actor further along the value chain has a greater impact on the outcome associated with the deployment of an AI system.

Summary of Comments

To foster an accountability framework which creates earned trust in AI systems a *situational* approach is required; one that has regard to both the type of AI and the context in which it is deployed. In identifying the points within an AI value chain where accountability efforts should be focused, I have advocated in favour of a two-question approach. Question 1, addresses the issue of who has the most *influence* over a situation in which AI is deployed and Question 2, focusses on the issue of *control* and who is likely to control a situation involving AI leading to a particular outcome.

Such a two-question approach I consider accommodates the varying permutations and contexts in which AI is deployed. Viewing AI situationally ensures accountability efforts therefore reflect the practical use of AI, which in turn better instils trust in a subsequent regulatory response.

I am grateful to the NTIA for the opportunity to share my views on this matter and to contribute to the ongoing global debate among policymakers about how to regulate AI technologies. Should the NTIA require further information or assistance from me, I am happy to engage in discussions relating to this matter.

Yours faithfully,

/Estelle Wallingford/

ESTELLE WALLINGFORD
Lecturer

Monash University
Monash Business School
Department of Business Law and Taxation
900 Dandenong Road
Caulfield East, VIC, 3145
Australia